

MASTER SERVICE AGREEMENT BETWEEN VANGUARD SERVICES LTD. AND HORIZON NETWORKS PVT. LTD.

Between: **Vanguard Services Ltd.** (Service Provider) and **Horizon Networks Pvt. Ltd.** (Client)

Effective Date: 2024-04-21

Termination Date: 2028-04-21

Governing Law: the laws of the State of Delaware

1. Term

This Agreement shall commence on the Effective Date, 2024-04-21, and shall continue until 2028-04-21, unless earlier terminated in accordance with Clause 1. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

2. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Vanguard Services Ltd. shall process personal data of Horizon Networks Pvt. Ltd.'s employees or customers only as necessary to perform the Services and strictly in accordance with Horizon Networks Pvt. Ltd.'s written instructions. Vanguard Services Ltd. shall implement appropriate technical and organisational measures to protect such data.

3. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

4. Limitation of Liability

In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits or data, even if advised of the possibility thereof. The aggregate liability of either Party under this Agreement shall not exceed Rs. 20,00,000 (Rupees Twenty lakh Only). This limitation does not apply to obligations arising from Clause 3 or indemnification obligations.

5. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

6. Intellectual Property

All intellectual property rights in deliverables created specifically for Horizon Networks Pvt. Ltd. under this Agreement shall vest in Horizon Networks Pvt. Ltd. upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. Vanguard Services Ltd. grants Horizon Networks Pvt. Ltd. a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Horizon Networks Pvt. Ltd.'s internal business purposes.

7. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this service agreement Agreement dated 2024-04-21 between Vanguard Services Ltd. and Horizon Networks Pvt. Ltd.. "Services" means the services described in Clause 5. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

8. Force Majeure

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

9. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

10. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware. Subject to Clause 415, the courts of Bengaluru shall have exclusive jurisdiction over any dispute arising out of or relating to this Agreement.

11. Insurance

Vanguard Services Ltd. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 20,00,000 (Rupees Twenty lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 20,00,000 (Rupees Twenty lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Vanguard Services Ltd. shall provide evidence of such insurance upon request.

12. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Bengaluru. The award shall be final and binding.

13. Amendments

No amendment to this Agreement shall be valid unless made in writing and duly signed by authorised representatives of both Parties. Any waiver of any provision of this Agreement shall be effective only if in writing and shall not be deemed a waiver of any other provision.

IN WITNESS WHEREOF

Service Provider

Vanguard Services Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____

Client

Horizon Networks Pvt. Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____